EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 40714/20
Zemfira ALIYEVA
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 15 February 2023 as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 18 August 2020,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Ms Zemfira Islam gizi Aliyeva, was born in 1961. She was represented by Mr J. Javadov, a lawyer based in Baku.

The applicant's complaints under Article 11 of the Convention concerning the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events were communicated to the Azerbaijani Government ("the Government"). The complaints based on the same facts were also communicated under Article 13 of the Convention.

By a letter dated 20 October 2023 the applicant informed the Registry that she wanted to withdraw the application to the Court since the matter had already been resolved.

THE LAW

In the light of the foregoing, the Court concludes that the applicant may be regarded as no longer wishing to pursue the application (Article 37 § 1 (a) of the Convention). Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and the Protocols thereto which require the continued examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 14 March 2024.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President